

Classwide Scheduling of Controlled Substances

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As new dangerous substances appear on the illicit drug market in the United States, the Drug Enforcement Administration (DEA) may use its emergency scheduling authority to temporarily place those substances in Schedule I of the Controlled Substances Act (CSA) if the agency deems it necessary to avoid imminent hazards to public safety. (DEA was given temporary scheduling authority in the Comprehensive Crime Control Act of 1984 [Title II of P.L. 98-473].) However, as DEA has worked alongside state and foreign authorities to control hazardous substances, new, yet similar, substances have been found to rapidly emerge. Chemists, often operating illicitly, slightly alter a regulated compound to create a similar substance that is in the same structural class, but is not specifically controlled. Law enforcement has described efforts to control each new substance as a game of “whack-a-mole.”

The CSA classifies various substances in one of five lists known as “schedules” based on characteristics such as their medical use, potential for abuse, and safety or dependence liability. Schedule I is the most restrictive, containing substances with no accepted medical use and high potential for abuse, such as heroin. The CSA authorizes the Attorney General to schedule substances temporarily or permanently via an administrative rulemaking process, and the Attorney General has delegated that scheduling authority to DEA. Congress may also schedule substances via legislation.

In 2018, when new fentanyl analogues were rapidly emerging, DEA issued a temporary scheduling order (TSO) that placed a class of fentanyl-related substances in Schedule I under the CSA for two years. Congress (and Presidents Trump and Biden) enacted legislation to extend the TSO 10 times before making the classwide scheduling permanent through the Halt All Lethal Trafficking of Fentanyl Act (HALT Fentanyl Act; P.L. 119-26). Until the 2018 TSO, DEA had never scheduled substances as a class, but Congress had previously done so. For example, Congress defined “cannabimimetic agents” and added these substances as a class to Schedule I of the CSA through the Synthetic Drug Abuse Prevention Act of 2012 (P.L. 112-144).

As new classes of substances emerge, Congress may consider how best to control these substances and stem the flow of illicit drugs and their analogues in the United States. Policymakers may evaluate the use and effect of classwide scheduling as one such means of drug control policy.

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Introduction

As new dangerous substances appear on the illicit drug market in the United States, the Drug Enforcement Administration (DEA) may use its emergency scheduling authority to temporarily place those substances in Schedule I of the Controlled Substances Act (CSA) if the agency deems it necessary to avoid imminent hazards to public safety.¹ (DEA was given temporary scheduling authority in the Comprehensive Crime Control Act of 1984.²) However, as DEA has worked alongside state and foreign authorities to control hazardous substances, new, yet similar, substances have been found to rapidly emerge. Chemists, often operating illicitly, slightly alter a regulated compound to create a similar substance that is in the same structural class, but is not specifically controlled. Law enforcement has described efforts to control each new analogue substance as a game of “whack-a-mole.”³

In 2018, to get ahead of this issue when new fentanyl analogues were rapidly emerging, DEA issued a temporary scheduling order (TSO) that placed a class of fentanyl-related substances (FRS) in Schedule I under the CSA for two years.⁴ Congress (and Presidents Trump and Biden) enacted legislation to extend the TSO 10 times before making the classwide scheduling permanent through the Halt All Lethal Trafficking of Fentanyl Act (HALT Fentanyl Act).⁵ As new substances emerge, Congress may consider how best to control these substances and stem the flow of illicit drugs and their analogues in the United States. This report discusses scheduling under the CSA, previous actions on classwide scheduling, and issues for congressional consideration.

Scheduling Under the CSA

The CSA established five lists known as “schedules” into which substances may be classified.⁶ Schedule I is the most restrictive, containing substances with no accepted medical use and high potential for abuse, such as heroin.⁷ The CSA authorizes the Attorney General to schedule

¹ 21 U.S.C. §811(h).

² Title II of P.L. 98-473.

³ U.S. Government Accountability Office, *Considerations for the Class-Wide Scheduling of Fentanyl-Related Substances*, GAO-21-499, April 2021, pp. 3 and 53, <https://www.gao.gov/assets/gao-21-499.pdf>.

⁴ Drug Enforcement Administration, “Schedules of Controlled Substances: Temporary Placement of Fentanyl-Related Substances in Schedule I,” 83 *Federal Register* 25, February 6, 2018.

⁵ P.L. 119-26. On February 6, 2020, the Temporary Reauthorization and Study of the Emergency Scheduling of Fentanyl Analogues Act (P.L. 116-114) extended the TSO on FRS until May 6, 2021. P.L. 117-12 (Extending Temporary Emergency Scheduling of Fentanyl Analogues Act; enacted on May 4, 2021) extended the TSO until October 22, 2021. Section 3104 of P.L. 117-43 (Extending Government Funding and Delivering Emergency Assistance Act; enacted on 9/30/21) extended the TSO until January 28, 2022. Section 2103 of P.L. 117-70 (Further Extending Government Funding Act; enacted on December 3, 2021) extended the TSO until February 18, 2022. Section 1102 of P.L. 117-86 (Further Additional Extending Government Funding Act; enacted on February 18, 2022) extended the TSO until March 11, 2022. Section 2 of P.L. 117-95 (Extension of Continuing Appropriations Act, 2022; enacted on March 11, 2022) extended the TSO until March 15, 2022. Section 151 of P.L. 117-103 (enacted on March 15, 2022), extended the TSO until December 31, 2022. Section 601 of P.L. 117-328 (FY2023 omnibus, enacted on December 29, 2022) extended the TSO until December 31, 2024. Section 5105 of P.L. 118-158 (the continuing resolution [CR] enacted on December 21, 2024) extended the TSO until March 31, 2025. Section 3105 of P.L. 119-4 (the FY2025 CR enacted on March 15, 2024) extended the TSO until September 30, 2025.

⁶ For general information on the legal regime established by the CSA, see CRS Report R45948, *The Controlled Substances Act (CSA): A Legal Overview for the 119th Congress*.

⁷ 21 U.S.C. §812.

substances temporarily or permanently via administrative rulemaking processes.⁸ Although the Attorney General has delegated that scheduling authority to DEA, he also retains the authority to make scheduling decisions.⁹ Congress may also schedule substances via legislation. Further, analogues of controlled substances in Schedules I or II of the CSA may be treated as Schedule I controlled substances for enforcement purposes *if* they are substantially similar to Schedule I or II controlled substances and intended for human consumption.¹⁰

Permanent Administrative Scheduling

DEA may place substances into schedules under the CSA based upon eight factors: (1) potential for abuse; (2) known scientific evidence of pharmacological effects; (3) current scientific knowledge of the substance; (4) history and current pattern of abuse; (5) scope, duration, and significance of abuse; (6) risk to public health; (7) dependence liability; and (8) whether the substance is a precursor of an already-scheduled substance.¹¹ DEA must consider all eight factors for a substance to be scheduled. Before initiating the rulemaking process, DEA must request a scientific and medical evaluation of the substance at issue from the Department of Health and Human Services (HHS).¹² HHS's scientific and medical findings are binding on DEA, and if HHS recommends against scheduling a substance, DEA cannot schedule it, but DEA otherwise has the authority to make final scheduling decisions.¹³ Permanent administrative scheduling is conducted through formal rulemaking under the Administrative Procedure Act, meaning that interested parties may submit comments, and DEA must provide an opportunity for a hearing on the decision before it becomes final.¹⁴ The decision whether to schedule, reschedule, or deschedule a substance through this administrative process is subject to judicial review.¹⁵

The CSA separately outlines procedures for scheduling controlled substances based on U.S. treaty obligations. If control of a substance is required by U.S. treaty obligations, the CSA directs the DEA administrator to “issue an order controlling such drug under the schedule he deems most appropriate to carry out such obligations.”¹⁶ Scheduling pursuant to international treaty obligations does not require the factual findings that are necessary for other administrative scheduling actions, and may be implemented without regard to the procedures outlined for regular administrative scheduling.¹⁷ As of the date of this report, CRS has not identified any instance of DEA implementing classwide scheduling of controlled substances via the formal rulemaking process or pursuant to U.S. treaty obligations.¹⁸

⁸ 21 U.S.C. §811.

⁹ 28 C.F.R. §0.100(b); see also, e.g., Drug Enforcement Administration, “Schedules of Controlled Substances: Rescheduling of Marijuana,” 89 *Federal Register* 44601, May 21, 2024. Because most administrative scheduling decisions are made by DEA pursuant to its delegated authority, this report generally refers to scheduling by DEA rather than the Attorney General.

¹⁰ 21 U.S.C. §§802(32) and 813.

¹¹ 21 U.S.C. §811(c).

¹² 21 U.S.C. §811(b).

¹³ 21 U.S.C. §811(b).

¹⁴ See generally 5 U.S.C. ch. 5.

¹⁵ 21 U.S.C. §811(a); see also *Touby v. United States*, 500 U.S. 160, 162–63 (1991).

¹⁶ 21 U.S.C. §811(d)(1).

¹⁷ 21 U.S.C. §811(d)(1).

¹⁸ DEA has scheduled numerous individual substances via the ordinary administrative scheduling process. The Department of Justice relied on the treaty-based scheduling authority to issue an April 23, 2026, final order easing some controls of medical marijuana under the CSA. See CRS Legal Sidebar LSB11424, *Department of Justice Eases Control of Medical Marijuana*.

Temporary Administrative Scheduling

Under a 1984 amendment to the CSA, DEA has the authority to temporarily place a substance into Schedule I of the CSA to “avoid imminent hazards to public safety.”¹⁹ To do so, DEA must consider the substance’s history and current pattern of abuse; scope, duration, and significance of abuse; and risk to public health.²⁰ Emergency scheduling orders are not subject to judicial review.²¹

When a substance is scheduled through this temporary scheduling process, it may remain on Schedule I for two years.²² If DEA undertakes permanent scheduling proceedings for a substance that has been temporarily scheduled, the agency then has the authority to keep the substance on Schedule I for one additional year before it must be removed or permanently scheduled.²³ This process can present an issue in the context of classwide scheduling because DEA and HHS may not have sufficient time or resources to perform the full eight-factor analysis for each substance in a large class of substances to complete permanent scheduling before temporary scheduling expires.²⁴

Legislative Scheduling

As an alternative to the permanent and temporary administrative scheduling procedures outlined above, Congress can schedule substances by enacting legislation. Congress initially placed numerous substances in Schedules I through V when it enacted the CSA in 1970.²⁵ Since the CSA’s enactment, most subsequent scheduling changes have been made by DEA via the rulemaking process. However, Congress has at times enacted legislation to schedule controlled substances or change the status of existing controlled substances.²⁶ (The procedural and factfinding requirements for administrative scheduling do not apply to legislative scheduling.) Congress has previously enacted laws that added substances to the CSA on a classwide basis. For instance, the HALT Fentanyl Act added FRS to schedule I of the CSA, and the Synthetic Drug Abuse Prevention Act of 2012 added certain cannabimimetic substances (commonly referred to as synthetic marijuana) to Schedule I.²⁷

¹⁹ 21 U.S.C. §811(h).

²⁰ 21 U.S.C. §811(h)(3).

²¹ 21 U.S.C. §811(h)(6).

²² 21 U.S.C. §811(h)(2). DEA was given temporary scheduling authority in the Dangerous Drug Diversion Control Act of 1984 (Title II, §508 of P.L. 98-473). As enacted, a substance that was scheduled through the temporary scheduling process could remain on Schedule I of the CSA for one year, with a potential extension of six months before it must be removed or permanently scheduled. The Synthetic Drug Abuse Prevention Act of 2012—Subtitle D of Title XI of the Food and Drug Administration Safety and Innovation Act (P.L. 112-144)—extended DEA’s temporary scheduling authority to two years for the initial scheduling with a potential extension of one year.

²³ 21 U.S.C. §811(h)(2).

²⁴ U.S. Government Accountability Office, *Synthetic Opioids: Considerations for the Class-Wide Scheduling of Fentanyl-Related Substances*, GAO-21-499, April 2021, p. 59, [chrome-extension://efaidnbmnnnibpcajpcglclefindmkaj/https://www.gao.gov/assets/gao-21-499.pdf](https://www.gao.gov/assets/gao-21-499.pdf).

²⁵ The schedules of substances controlled by legislation are codified at 21 U.S.C. §812.

²⁶ For examples of legislation scheduling controlled substances, see CRS In Focus IF12709, *Legislative Scheduling of Controlled Substances*.

²⁷ P.L. 112-144.

Analogue Enforcement Act

Some individuals and criminal organizations engaged in the illicit manufacturing and trafficking of illicit drugs seek to circumvent the CSA and other drug laws by slightly modifying the molecular structures of synthetic controlled substances (i.e., creating analogues).²⁸ In response, Congress and President Reagan enacted the Controlled Substances Analogue Enforcement Act of 1986,²⁹ which amended the CSA to impose controls on certain controlled substance analogues that are not specifically scheduled under the CSA. Under this act, a controlled substance analogue is a substance that is substantially similar to the chemical structure of a Schedule I or II controlled substance or has an effect on the nervous system similar to the effect of a Schedule I or II controlled substance.³⁰ If a substance falls within the definition of “controlled substance analogue” and is intended for human consumption, it is treated as a controlled substance in Schedule I.³¹ This treatment means that DEA and the Department of Justice (DOJ) can restrict activities involving these unscheduled controlled substance analogues as they would for unauthorized activities involving Schedule I controlled substances and prosecute individuals engaged in such restricted activities.

Classwide Scheduling of FRS

As the U.S. opioid crisis evolved and law enforcement identified more fentanyl analogues, DEA struggled to keep pace with the scheduling of each new analogue.³² Further, DOJ has reportedly had difficulty using the Analogue Enforcement Act to prosecute cases, as analogue prosecutions require “expending a great deal of time and resources” and each new jury must evaluate technical information on the analogues that can yield inconsistent prosecution outcomes.³³ As such, DEA issued the 2018 TSO, and controlled FRS as a class (based on their chemical structure) in Schedule I.³⁴ This effort was the first time substances had been administratively scheduled as a class under the CSA. DEA did not initiate permanent scheduling of the full class of FRS, though the agency continued to take temporary and permanent scheduling actions with respect to specific fentanyl analogues, including selected FRS subject to the Fentanyl TSO.³⁵

The Fentanyl TSO was set to expire in February 2020. On February 6, 2020, due to the time limits of DEA’s temporary scheduling authority and wanting to keep FRS scheduled as a class, Congress extended the TSO through the Temporary Reauthorization and Study of the Emergency

²⁸ Synthetic drugs, as opposed to natural drugs, are chemically produced in laboratories. Their chemical structures can be either identical to or different from naturally occurring drugs, and their effects are designed to mimic or even enhance those of natural drugs. When produced clandestinely, they are not typically controlled pharmaceutical substances intended for legitimate medical use. For more information, see Drug Enforcement Administration, *Synthetic Drugs*, https://www.deadiversion.usdoj.gov/synthetic_drugs/synthetic-drugs.html; and *2025 National Drug Threat Assessment*, pp. 8-10, <https://www.dea.gov/sites/default/files/2025-07/2025NationalDrugThreatAssessment.pdf>.

²⁹ P.L. 99-570.

³⁰ 21 U.S.C. §802(32).

³¹ 21 U.S.C. §813.

³² See discussion of this issue in Drug Enforcement Administration, “Schedules of Controlled Substances: Temporary Placement of Fentanyl-Related Substances in Schedule I,” 83 *Federal Register* 5188, February 6, 2018.

³³ U.S. Government Accountability Office, *Considerations for the Class-Wide Scheduling of Fentanyl-Related Substances*, GAO-21-499, April 2021, p. 59, <https://www.gao.gov/assets/gao-21-499.pdf>.

³⁴ Drug Enforcement Administration, “Schedules of Controlled Substances: Temporary Placement of Fentanyl-Related Substances in Schedule I,” 83 *Federal Register* 5188, February 6, 2018.

³⁵ See Schedules of Controlled Substances: Placement of Four Specific Fentanyl-Related Substances in Schedule I, 86 *Federal Register* 14707, Mar. 18, 2021.

Scheduling of Fentanyl Analogues Act.³⁶ Congress went on to extend the TSO 9 more times³⁷ before permanently scheduling FRS as a class through the HALT Fentanyl Act.

In addition to permanently scheduling the class of FRS, the HALT Fentanyl Act also made other changes to the law, including expressly providing that the CSA's quantity-based mandatory minimum prison sentences that apply to certain offenses involving fentanyl analogues also apply to offenses involving FRS and streamlining research with Schedule I controlled substances.³⁸

Effect of Classwide Scheduling on the Illicit Drug Market

Drug traffickers may attempt to skirt laws regulating fentanyl and its analogues by slightly altering the chemistry of those controlled substances. This method appears to be true not only for individual substances but for entire classes of substances as well. Scheduling FRS as a class contributed to a shift to the production of other classes of uncontrolled psychoactive substances.³⁹ Some experts argue that the international and classwide controls of FRS contributed to the emergence of nitazenes (also known as benzimidazole-opioids) on the illicit drug market.⁴⁰ Further, some point to the People's Republic of China's actions to control nitazenes as the reason that orphines (or "orphine analogues") have emerged in the street market.⁴¹ Both nitazenes and orphines are potent synthetic opioids that elicit effects similar to those of fentanyl.⁴²

Options for Congress

In considering future synthetic drug control efforts, there are several issues on which Congress may deliberate. Congress may consider the effect of classwide scheduling on federal enforcement and on researchers. Given the enforcement challenges involving synthetic drugs and the utility of classwide scheduling for FRS, Congress may consider expanding classwide scheduling for other

³⁶ P.L. 116-114.

³⁷ See footnote 5.

³⁸ For an overview of the legal effects of the HALT Fentanyl Act, see CRS Legal Sidebar LSB11343, *HALT Fentanyl Act Permanently Controls Fentanyl-Related Substances*. The specification that FRS are subject to quantity-based mandatory minimum sentences was motivated in part by litigation in cases including *United States v. McCray*, 346 F. Supp. 3d 363 (W.D.N.Y. 2018). For discussion of *McCray*, see CRS Legal Sidebar LSB11263, *United States v. McCray and Criminal Sentences for Fentanyl Analogue Offenses*.

³⁹ Drug Enforcement Administration, Public Safety Advisory, *Heightened Threat: Fentanyl Mixed with Emerging Synthetic Drugs*, May 12, 2026, <https://www.dea.gov/press-releases/2026/05/12/public-safety-advisory>; United Nations, Office on Drugs and Crime, *UNODC World Drug Report 2026: Global drug markets transforming rapidly as technology, novel drug types and instability present traffickers with new opportunities*, June 2026, https://www.unodc.org/unodc/en/press/releases/2026/June/unodc-world-drug-report-2026_-global-drug-markets-transforming-rapidly-as-technology-novel-drug-types-and-instability-present-traffickers-with-new-opportunities.html.

⁴⁰ Other reported factors contributing to the rise of nitazenes in the illicit drug supply include the relative ease of producing these substances and their high potency. See Joana R. P. Pereira, Alexandre Quintas, and Nuno R. Neng, "Nitazenes: The Emergence of a Potent Synthetic Opioid Threat," *Molecules*, vol. 30, no. 19 (September 26, 2025), p. 3890.

⁴¹ The Center for Forensic Science Research and Education, *Increase in Fatal Overdoses Linked to Novel Synthetic Opioid N-Propionitrile Chlorphine (Cychlorphine)*, January 30, 2026, <https://www.cfsre.org/nps-discovery/public-alerts/increase-in-fatal-overdoses-linked-to-novel-synthetic-opioid-n-propionitrile-chlorphine-cychlorphine>.

⁴² *United Nations Office of Drugs and Crime, Laboratory and Scientific Service Portals*, Orphine Analogues, <https://www.unodc.org/LSS/SubstanceGroup/Details/09f4734d-aadb-44a0-aa76-2e8816b1cc02>; and "Nitazenes: An Old Drug Class Causing New Problems," *Missouri Medicine*, vol. 122, no. 4 (July/August 2025).

classes of substances aside from FRS, such as nitazenes and orphines, or whether to adjust DOJ and DEA's authority to impose classwide scheduling or conduct additional oversight over DEA's scheduling processes.

Considering Federal Enforcement and Research

Policymakers may consider the implications of scheduling on the federal criminal justice system and on researchers. Data gathered by the U.S. Sentencing Commission (USSC) and the Government Accountability Office (GAO) appear to indicate that, in the first few years FRS classwide scheduling was in place, DOJ obtained convictions for trafficking in FRS relatively infrequently (in **Table 1**, *non-scheduled fentanyl analogues*) compared to convictions for trafficking fentanyl or fentanyl analogues (see **Table 1**). In this section, CRS refers to “non-scheduled fentanyl analogues” as those fentanyl analogues that *might* fall under the FRS classwide scheduling order but are not specifically scheduled.

Table 1. Number of Individuals Federally Sentenced for Trafficking of Fentanyl, Fentanyl Analogues, and Non-scheduled Fentanyl Analogues

Fentanyl Category	FY2019	FY2020	FY2021	FY2022	FY2023	FY2024	FY2025
Fentanyl	895	1,023	1,533	2,366	3,085	3,639	3,605
Fentanyl Analogues	126	122	123	145	269	348	287
Non-scheduled Fentanyl Analogues	2	1	4	4	10	N/A	N/A

Source: USSC, *Fentanyl Trafficking and Fentanyl Analogue Trafficking*, Quick Facts, May 2026 and May 2025; USSC, *Fentanyl and Fentanyl Analogues: Federal Trends and Trafficking Patterns*, January 25, 2021, p. 23; GAO, *Synthetic Opioids: Considerations for the Class-Wide Scheduling of Fentanyl-Related Substances*, p. 58; and data provided to CRS by USSC on February 21, 2025.

Notes: As categorized by USSC, non-scheduled fentanyl analogues are included in the fentanyl analogue numbers. Further, the cases in this table represent only those in which fentanyl or fentanyl analogues were the primary drugs. In their review of cases, USSC was able to identify which cases involved non-scheduled fentanyl analogues. For example, in FY2023, there were 269 cases in which fentanyl analogues were the primary or only drugs involved. In those cases, 10 involved non-scheduled analogues (i.e., those that might fall under the fentanyl-related substance classwide scheduling order). However, in another 23 cases, the courts did not specify the type of fentanyl analogues involved, although this does not mean that those cases involved non-scheduled analogues.

While USSC does not indicate in its data whether U.S. attorneys relied on the FRS classwide scheduling order, GAO reported that in FY2019 and FY2020, U.S. attorneys relied on the order for those three cases involving analogues that were not individually scheduled.⁴³

Over the years, medical researchers have created various synthetic substances that have been used in medical treatment. Some researchers have expressed concern over the challenges of researching FRS due to their Schedule I status. One concern is the amount of time required to obtain approval for their research.⁴⁴ CSA requirements are most stringent for Schedule I controlled substances. In response to concerns over the additional requirements for Schedule I

⁴³ GAO, *Considerations for the Class-Wide Scheduling of Fentanyl-Related Substances*, p. 58.

⁴⁴ GAO, *Considerations for the Class-Wide Scheduling of Fentanyl-Related Substances*, pp. 16-18.

research, Congress included several provisions in the HALT Fentanyl Act⁴⁵ meant to ease some of the requirements for all Schedule I research. Congress may evaluate those provisions and may further amend CSA requirements.

Amending Scheduling Authority

In considering classwide scheduling via administrative rulemaking, Congress may choose to amend this scheduling authority in any number of ways. Similar to what was done through the Synthetic Drug Abuse Prevention Act of 2012,⁴⁶ Congress could adjust the amount of time for which substances or classes of substances may be temporarily scheduled or make other adjustments to this authority. Congress could also prohibit DEA from scheduling in a classwide capacity or continue to allow it. Further, Congress could conduct additional oversight over DEA's scheduling processes.

Considering Classwide Scheduling Legislation

Because Congress legislatively placed the class of FRS in Schedule I, those substances will remain subject to the requirements of Schedule I unless Congress or DEA takes further action to change their status. Congress has the authority to modify the status of FRS by legislation and could reschedule or deschedule the class as a whole or specific substances within the class. Congress could also enact legislation retaining the class of FRS in Schedule I but creating targeted exceptions or modifications to that Schedule I status. For instance, as noted above, the HALT Fentanyl Act expressly provided that mandatory minimum prison sentences that apply to certain CSA offenses involving specified amounts of fentanyl analogues also apply to offenses involving threshold amounts of FRS.⁴⁷ Other legislation proposed during the 119th Congress would have taken a different approach by scheduling the class of FRS while excepting offenses involving FRS from those mandatory minimum prison sentences.⁴⁸ Proposed FRS scheduling legislation would have included an “off-ramp” provision allowing for expedited administrative descheduling or rescheduling of FRS that were later found not to pose a serious danger to public health.⁴⁹ These provisions were not included in the HALT Fentanyl Act as enacted.

Congress may also consider legislation to control other classes of substances. When considering such legislation, one question that arises for Congress is whether to impose controls via legislation or to leave scheduling to DEA. Congress often defers to DEA to schedule controlled substances in consultation with HHS because the agencies have expertise in this area. There may be benefits to legislative scheduling, however, including the ability to control substances quickly without needing to go through administrative rulemaking, reduction in fact-finding burdens on the agencies, and greater ability to tailor controls beyond what is already contained in the CSA's schedules. If Congress chooses to act via legislation, it may consider factors such as how to define the class of substances subject to control, what schedule to place the class in, and whether to create any class-specific modifications of CSA control.

⁴⁵ P.L. 119-26. For details on these provisions, see CRS Legal Sidebar LSB11343, *HALT Fentanyl Act Permanently Controls Fentanyl-Related Substances*.

⁴⁶ Subtitle D of Title XI of the Food and Drug Administration Safety and Innovation Act; P.L. 112-144.

⁴⁷ Section 6 of P.L. 119-26.

⁴⁸ See, e.g., Save Americans from the Fentanyl Emergency Act, H.R. 830, §3 (119th Cong. 2025).

⁴⁹ See, e.g., Save Americans from the Fentanyl Emergency Act, H.R. 830, §5 (119th Cong. 2025).

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